# HOPE Program

# Employee Handbook

**Updated 2023**



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HOPE PROGRAM
Helping Overcome Personal Experiences

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# INTRODUCTION

## Welcome

Welcome to HOPE Program, Licensed Clinical Social Worker Professional Corporation ("HOPE Program"). One of the keys to our success is hiring great employees. We have hired you because we believe you have the skills and the potential to help HOPE Program succeed.

We are glad to have you as a member of the HOPE Program team. We hope that your employment proves mutually satisfying and that you will make an important contribution to our future. Every employee has an important role in our operations and we value the abilities, experience, and background that you bring with you. It is our employees who provide the services that our clients rely upon and enable us to grow and create new opportunities in the years to come.

Once again, welcome to HOPE Program; we are glad to have you with us.

Shannon Smith
CEO

## Purpose of This Handbook

This Employee Handbook will familiarize you with the various aspects of working with us. We encourage you to use it as a valuable resource for understanding HOPE Program.

This handbook is a guide to our employment practices and policies and is not intended as a contract of continued employment. Nothing in the handbook or in any other personnel document, including benefit plan descriptions, creates or is intended to create a promise or representation of continued employment for any employee. We are an at-will employer. For additional information, see the section on "At-Will" employment. Employees are required to acknowledge, understand and adhere to these policies. If you have any questions or concerns regarding your employment at HOPE Program, or any of our policies, please speak to your manager or Human Resources (HR) at any time.

HOPE Program reserves the right to revise, modify, delete, or add to any and all policies, procedures, work rules, or benefits stated in this handbook or in any other document, except for the policy of at-will employment. Changes may be made at any time with, or without, prior notice.

The handbook replaces all previous personnel handbooks, policies, practices, and guidelines. No one other than Shannon Smith, CEO, has the authority to enter into any other agreement that modifies Company policy. If a HOPE Program employee has a written employment agreement that conflicts with the policies in this handbook, the written employment agreement will prevail.



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# Employee Relations

## Standards of Conduct

Employees are expected to follow all HOPE Program policies and procedures. Specific conduct which may result in immediate suspension or termination includes, but is not limited to: fighting; stealing; insubordination; possession of weapons on HOPE Program premises; falsification of business records including employment records, applications, client records, and expense and time reports; possession, use, sale, or distribution of alcohol or controlled substances on HOPE Program premises (see "Drug and Alcohol Policy" for further information), unauthorized disclosure of confidential business or client records or information; violation of HOPE Program policy, and violation of laws including intellectual property law.

## Conflict Resolution

Misunderstandings and conflicts happen in every workplace. It is helpful to solve these before serious problems develop. Many incidents resolve themselves naturally, but if a situation persists that you believe is detrimental to you or to HOPE Program, please:

1. First, try to discuss the problem directly with your colleague as soon as possible. If you believe a discussion with your colleague is not appropriate or has not worked, then proceed to the next step.
2. Discuss the problem with your Clinical Director or Supervisor. If the issue is not resolved after the discussion with your Clinical Director or Supervisor, or if you do not feel comfortable discussing the issue with your Clinical Director or Supervisor, then request a meeting with Human Resources. Human Resources will invite a member of leadership to attend the meeting. To try to resolve the problem, the facts will be considered and, if necessary, an investigation will be conducted. You may be asked to provide a written summary of your complaint.
3. Any matter that leads to investigation, will be reviewed by Human Resources, the Executive Clinical Director (ECD) and CEO. Upon conclusion, you will be advised of a final decision and provided a coaching form to outline expectations.

HOPE Program does not tolerate any retaliation against employees who pursue this procedure. This procedure does not prevent, limit, or hinder HOPE Program from taking disciplinary action against any individual, up to and including, termination.

## Progressive Disciplinary Process

At times, we may need to work with an employee to correct a behavior or improve performance.

HOPE Program will, when possible, follow the procedure described below. Nothing in this policy gives an employee the right to receive any particular level of discipline in any given situation, nor does anything in this policy limit our or the employee's right to terminate the employment relationship at any time, with or without cause.



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1. If an employee needs to improve their job performance or has violated HOPE Program's standards of conduct, the employee will be given a verbal warning describing the area in need of improvement. This will be documented in the employee's one-on-one folder for manager tracking purpose.
2. If the employee fails to improve following a verbal warning, or if the employee has committed a violation of HOPE Program's standards of conduct that is considered serious in the judgment by the manager, a written warning will be issued. A written warning should be signed by both the employee and the manager. This document will be housed in employees' personal records.
3. In cases where an employee fails to improve after a written warning or where the employee has grossly violated the standards of conduct to such a degree as to make suspension or termination appropriate, a manager will recommend suspension or termination of the employee to Human Resources and the appropriate manager. Steps one and two will be overridden in these circumstances and all suspensions and terminations will be approved by the Executive Clinical Director or CEO.

**Open Door Policy**

HOPE Program encourages open communication among its employees and senior management. Employees are encouraged to approach any member of the management team anytime with questions or concerns.

**Sexual and Other Forms of Prohibited Harassment and Discrimination**

HOPE Program is committed to providing a work environment free of unlawful harassment and discrimination. Organizational policy prohibits sexual harassment and harassment based on pregnancy, childbirth or related medical conditions, genetic information, race, religious creed, color, gender, gender identity, gender expression, national origin or ancestry, physical or mental disability, medical condition, marital status, registered domestic partner status, age, sexual orientation or any other basis protected by federal, state or local law or ordinance or regulation. All such harassment and discrimination are unlawful.

Our anti-harassment and anti-discrimination policy applies to all persons involved in the operation of HOPE Program and prohibits unlawful discrimination or harassment by any employee, including managers, as well as third parties including vendors and clients, to the extent that HOPE Program can control those third parties. It also prohibits unlawful harassment based on the perception that anyone has any of those characteristics, or is associated with a person who has or is perceived as having any of those characteristics.

Prohibited unlawful harassment includes, but is not limited to, the following behavior:

- Verbal conduct such as epithets, derogatory jokes or comments, slurs or unwanted sexual advances, invitations or comments;
- Visual displays such as derogatory and/or sexually-oriented posters, photography, cartoons, drawings or gestures;



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- Physical conduct including assault, unwanted touching, intentionally blocking normal movement or interfering with work because of sex, race or any other protected basis;
- Threats and demands to submit to sexual requests as a condition of continued employment, or to avoid some other loss and offers of employment benefits in return for sexual favors; and
- Retaliation for reporting or threatening to report harassment.

If you believe that you have been unlawfully harassed or discriminated against, you have the right to make a complaint. Submit a written complaint to your own or any other Clinical Director or Supervisor or Human Resources as soon as possible after the incident. You will be asked to provide details of the incident(s), names of individuals involved and names of any witnesses. Clinical Director or Supervisor will refer all harassment complaints to the CEO. HOPE Program has the option to bring in an external investigator.

We will promptly undertake a thorough and objective investigation of the allegations. Every attempt will be made to protect the privacy of the individuals involved, but we cannot and do not guarantee that the complaint and the investigation will remain strictly confidential. If we determine that this policy has been violated, effective remedial action will be taken in accordance with the circumstances involved. Even if the conduct does not constitute a violation of any law prohibiting harassment or discrimination, it may still be found to be a violation of this policy.

Any employee determined to be responsible for a violation of this policy will be subject to appropriate disciplinary action up to, and including termination. Although we will try to advise concerned parties of the outcome of the investigation, for reasons of privacy, the details of an investigation's outcome will not generally be shared. HOPE Program will not retaliate against any employee for filing a complaint and will not tolerate or permit retaliation by management, employees or co-workers.

HOPE Program encourages all employees to report any incidents of harassment and discrimination forbidden by this policy immediately so that complaints can be quickly and fairly resolved. The Federal Equal Employment Opportunity Commission and the California Department of Fair Employment and Housing investigate and prosecute complaints of prohibited harassment in employment. If you think you have been harassed or that you have been retaliated against for resisting or complaining, you may file a complaint with the appropriate agency.

**Consensual Romantic Relationships Between Employees**

HOPE Program knows that employees sometimes engage in consensual romantic relationships with each other. When these occur, the employees have a responsibility to report the relationship immediately to their Clinical Director and Human Resources. In addition, employees involved in these relationships must act professionally at all times and not engage in any conduct during work that may be offensive or make others uncomfortable. Employees may not be in romantic relationships with other employees. If such a relationship begins, it is the employees' responsibility to promptly inform their manager and Human Resources so that, if possible, an appropriate transfer may be arranged.



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Please note that while HOPE Program's sexual harassment policy does not prohibit truly consensual romantic relationships between employees, it has a policy of zero tolerance for any form of harassment or discrimination.

**Abusive Conduct**

HOPE Program also prohibits abusive conduct or bullying. Prohibited behavior, as defined under California law includes "conduct of an employer or employee in the workplace, with malice, that a reasonable person would find hostile, offensive, and unrelated to an employer's legitimate business interests. Abusive conduct may include repeated infliction of verbal abuse or physical conduct that a reasonable person would find threatening, intimidating, or humiliating, or the gratuitous sabotage or undermining of a person's work performance."

If you believe that you have experienced, witnessed, or are aware of any incident of abusive behavior at HOPE Program, immediately submit a written complaint to Human Resources.

**Unlawful Retaliation**

Retaliation for reporting or opposing possible unlawful or improper conduct, or for assisting in the reporting or investigation of such conduct, constitutes employee misconduct and will not be tolerated. HOPE Program is committed to providing a work environment that is free from all forms of improper retaliation.

State and federal law prohibits retaliation against an employee or applicant on many grounds, including, but not limited to, retaliation for reporting or opposing sexual or other unlawful harassment, discrimination, health and safety violations, assisting in a workers' compensation proceeding, or for disclosing to a government or law enforcement agency violations of state or federal statutes or noncompliance with laws or regulations.

If you believe that you have experienced, witnessed or are aware of an incident of possible retaliation, immediately submit a written complaint to your own or any other Clinical Director, and Human Resources. You will be asked to provide details of the incident or incidents, names of individuals involved and of any witnesses. Clinical Directors will refer all complaints to the appropriate manager. Depending on the circumstances of the complaint, HOPE Program may retain an external investigator.



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# Employment

## Employment at Will

We are an "at will" employer, which means that employment may be terminated by either the employee or by HOPE Program with or without cause, and without prior notice. Nothing in this handbook limits the right to terminate at-will employment. No employee has the authority to enter into an agreement for employment for any specified period of time or to make an agreement for employment on other than at-will terms. Only the CEO has the authority to make any such agreement, which is binding only if it is in writing.

## Introductory Period

Your first 6 months of continuous employment will no doubt be a learning experience. You will learn your job duties and responsibilities, get acquainted with your Clinical Director, Supervisor(s) and fellow employees, and familiarize yourself with HOPE Program in general. We refer to this initial period of employment as your introductory period. At the end of 6 months, you and your manager will review your performance. If your performance has been satisfactory, you are enjoying your experience at HOPE Program, and you are going to continue your employment, goals for the coming months will be established.

We understand that you will be learning a lot about your new job, you are still expected to perform satisfactorily and your performance will be reviewed closely. Either you or HOPE Program may end the employment relationship at any time during or after the introductory period. Completion of the introductory period does not guarantee continued employment and does not change the at-will nature of the employment relationship.

By the 60th day of employment, employees who work 32 or more hours per week are offered the opportunity to enroll into Benefits Plan, which goes into effect on the 1st of the following month.

## Immigration Law Compliance

All offers of employment are contingent on verification of your legal right to work in the United States. On your first day of work, you will be asked to provide original documents verifying your right to work and, as required by federal law, to sign Federal Form I-9, Employment Eligibility Verification Form. HOPE Program may be obligated to terminate your employment if at any time you cannot verify your right to work in the United States.

## Background Checks

HOPE Program strives to hire and retain the best-qualified individuals. Background checks and reference checks are an important part of these processes.

Consistent with legal and/or contractual requirements, and with written permission, HOPE Program may also review an applicant's or an employee's criminal conviction record, and related information, and use such information when making employment decisions, but only to the extent permissible under applicable law. All background checks will be conducted in strict



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conformity with the federal Fair Credit Reporting Act (FCRA), applicable state fair credit reporting laws, and state and federal anti-discrimination and privacy laws. HOPE Program is an equal opportunity employer and will comply with applicable federal, state and local laws relating to the use of background checks for employment purposes.

**Equal Employment Opportunity**

HOPE Program is an equal opportunity employer. In accordance with applicable law, we prohibit discrimination based on race, color, ethnicity, religion, creed, sex, pregnancy, marital status, domestic partner status, age, national origin or ancestry, physical or mental disability, medical condition, veteran status, sexual orientation, gender, gender identity, gender expression, genetic information, or any other consideration protected by federal, state, or local laws. Our commitment to equal opportunity employment applies to all persons involved with HOPE Program, including donors and vendors.

This policy applies to all areas of employment and it is the responsibility of every employee to follow the policy. Employees can raise concerns, ask questions, and make reports without fear of reprisal and are encouraged to bring any issues to the attention of Human Resources or their immediate Clinical Director. Anyone found to be engaging in any type of unlawful discrimination will be subject to disciplinary action, up to and including termination of employment.

**Nondiscrimination Against and Accommodation of Individuals with Disabilities**

We are committed to complying fully with the Americans with Disabilities Act (ADA) and other state and local laws that ensure equal opportunity in employment for qualified persons with disabilities.

Reasonable accommodation is available to all employees with disabilities where their disability affects the performance of essential job functions, to the extent that accommodation can reasonably be achieved without undue burden to HOPE Program. All employment decisions are based on the merits of the situation, not the disability of the individual.

HOPE Program is also committed to not discriminating against any qualified employees or applicants because they are related to or associated with a person with a disability.

This policy is neither exhaustive nor exclusive. HOPE Program is committed to taking all other actions necessary to ensure equal employment opportunity for persons with disabilities in accordance with the ADA and all other applicable federal, state and local laws. For more information, go to: www.usdoj.gov/crt/ada/adahom1.htm.

HOPE does not allow animals in the workplace; however, an individual with a disability may request a reasonable accommodation under the Americans with Disabilities Act to bring a service animal to work when medically necessary. HOPE reserves the right to evaluate that the accommodation is reasonable and can be provided without undue hardship.

## Employee Records

Employees are required to notify HOPE Program of changes in address, telephone number, and/or family status (i.e., births, marriage, divorce, etc.) and update our HR electronic platform accordingly. Employee records are the property of HOPE Program and access to the information they contain is restricted. Employees may review their own file by submitting a written request to Human Resources.

## Employment Classifications

For purposes of salary administration and eligibility for overtime payments and employee benefits, HOPE Program classifies employees as defined below. If you change positions during your employment, you will be informed of any change in your status. Please direct any questions you have to Human Resources.

### Nonexempt Employees

Employees who are eligible to be paid overtime in accordance with applicable federal and state wage and law hours. They may be either full-time or part-time employees.

### Exempt Employees

Employees who are not eligible for overtime in accordance with applicable federal and state wage and hour laws. Exempt employees are not paid based on the number of hours that they work and are expected to complete their work.

## Employment Status

HOPE Program has established the following categories for both nonexempt and exempt employees:

### Regular Full-time Employees

Regular full-time employees are at-will employees hired to work HOPE Program's normal 40-hour work week on a regular basis. These employees may be "exempt" or "nonexempt" as defined above. Full-time employees are expected to work a schedule of no less than forty hours per week based on the requirements of their position

### Regular Part-time Employees

Regular part-time employees are at-will and hired to work fewer than 40 hours per week on a regular basis. Such employees may be "exempt" or "nonexempt" as defined above. Part-time employees are expected to work a schedule that is agreed upon in advance, both in terms of work days and hours in the office. Some benefits are pro-rated based on the number of hours worked unless otherwise noted in this handbook. Certain coverage and benefits may be subject to a minimum number of hours worked. Part-time employees will not be eligible for some benefits, which are outlined in the handbook.

### Temporary Employees

Temporary employees are at-will and engaged to work full-time or part-time with the understanding that their employment may be terminated on or before completion of a



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specific assignment. A temporary employee may be offered and may accept a new temporary assignment with HOPE Program and still retain temporary status. Temporary employees are paid only for hours worked. Temporary employees are not eligible for benefits except those required by law.

**Leased Employees**

Leased employees are hired from temporary employment agencies and are employees of the agency and not of HOPE Program.

**Student Trainees**

Neither Student Trainees nor Associate Trainees are eligible for any of the benefits described in this handbook. Details about benefits for Student Trainees and Associate Trainees are available in the internal portal.

**Attendance and Punctuality**

Punctual and regular attendance is an essential responsibility of each employee at the HOPE Program. Employees are expected to report to work as scheduled, on time and prepared to work. Employees also are expected to remain at work for their entire work schedule. Late arrival, early departure or other absences from scheduled hours are disruptive and should be avoided. Your contribution is important to our work. If you are absent or late to work, you may place a burden on fellow employees, and it becomes more difficult to do their jobs. *Employees may not make changes to their work schedules without prior written approval from their clinical director.*

If you know in advance that you will need time away from work or will be late, you are expected to notify your Clinical Director as soon as possible so that arrangements can be made, as necessary, to cover your work duties. If advance notice is not possible because of an emergency or illness, you are expected to notify your immediate Clinical Director personally as soon as possible, at least one hour or more in advance of your reporting time. Absent extenuating circumstances, you must call in every day you are scheduled to work but will not be at work. Employees who are late must email their Clinical Director upon arriving at work.

An essential obligation of every employee is to be ready for work at the scheduled starting time. Routine transportation delays are not considered an excuse for tardiness. Employees who are not ready to begin work at their scheduled start time will be considered tardy.

Attendance records may be given consideration during performance and salary reviews. Unless inconsistent with applicable law, employees who are frequently absent or late to work will be subject to disciplinary action up to, and including, termination of employment. HOPE Program reserves the right to request verification of any absence.

If you fail to report for work without any notification to your Clinical Director and your absence continues for a period of three days, we will consider that you have abandoned and voluntarily terminated your employment.



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## Certification and Licensing

All Sex Offender Treatment Providers are expected to maintain current certification with the California Sex Offender Management Board (CASOMB) and adhere to the CASOMB and SARATSO's requirements. You are responsible for submitting certifications of specialized training to Human Resources and uploading these certifications in your Zenefits's Profile. You will also be responsible for matriculate up within 2 weeks of eligibility. These certificates will be kept in your personal file. HOPE Program will validate ongoing compliance by conducting internal quarterly audits. Maintaining CASOMB certification where required for job duties is the employee's responsibility, and failure to maintain valid certification can result in immediate suspension. HOPE will not reimburse employees for their first CASOMB application fee but will do so every 2 years they remain employed with HOPE thereafter.

You are responsible for adhering to the standards and ethics of your respective licensing board, such as the California Board of Psychology or California Board of Behavioral Science. Should a clinician's registration/license change status to anything other than active, they must immediately notify the Clinical Director and Human Resource and cease all client care until their status changes back to 'renewed and current' on BREEZE. All work shall be completed in a professional manner and in compliance with all applicable codes, laws, and ethical standards. Should your ability to perform your job due to licensure suspension or lapse, you will be considered for immediate suspension.

Employees are responsible for ensuring that their licenses and certifications are kept current and will be immediately suspended, without pay, if any license and/or certificate is allowed to expire (NOTE: Licensure refers to CA Board Registration and Licensure. Certifications include, but are not limited to, Supervisor CEUs, SARATSO Certification, CASOMB, NexTest, and TB).

HOPE Program will provide specialized trainings specifically designed to meet the CASOMB requirements and assist with your daily responsibilities. HOPE Program will cover the cost for all internal trainings and you will be paid for your attendance.

## Career Development

HOPE Program frequently provides in-house training for employee's career development to complement our Career Model (see internal portal) for employee growth. Many of these sessions meet continuing education requirements for the certification required for employment at HOPE. Employees are <u>required</u> to attend training to which they are invited. Except if extenuating circumstances (e.g., unplanned medical issue or planning issues) prevent an employee from attending required training, employees who miss these training must make them up through external sources at the employee's expense. Employees may use their annual stipend for this purpose.

- All employees who have completed at least one year of employment at HOPE Program are eligible to receive reimbursement for up to $250 in costs related to classes (e.g., Supervisor CEU, registration fees, tuition, materials, etc.) or conferences per calendar



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year related to Forensic Mental Health or Career Advancement within the agency. The stipend cannot be used towards any board related costs for registration or licensure. This money may be carried over from year to year, up to a maximum accrual of $500.

- Part-time employees working 15 hours or more are eligible to receive $175 per calendar year. This money may be carried over from year to year, up to a maximum accrual of $350.
- In instances when classes/conferences are graded or completion results in certification, employees will be eligible for reimbursement upon providing evidence of having received a passing grade (C or higher) or the certification.
- The Clinical Director must provide advanced approval before using and this approval must be included with the reimbursement expense sheet.

We will make every effort to ensure that all employees have equal opportunities for professional growth. In addition to formal training and conferences, managers will look for opportunities for staff to take on additional responsibilities, as desired, and to receive recognition for their efforts. As employees accept such responsibilities, they may be eligible for promotions that adjust either title or salary or both in accordance with their work performance.



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# Compensation

HOPE Program strives to pay wages that motivate employees, are fair and equitable, and are competitive with other employers in the marketplace. Each employee's initial compensation is based on skills and experience, internal and market compensation research, and our own financial circumstances. After that, compensation will be based on roles and responsibilities, individual performance and work outcomes, and HOPE Program's finances.

We may consider salary adjustments whenever we believe they are appropriate and will base them upon a number of factors, including performance and our finances. We generally review employees' total compensation annually, typically in October. Exceptions to this may occur with changes to job responsibilities, reorganization, promotion, or demotion. Compensation may be increased or decreased at our sole discretion.

## Performance Reviews

HOPE Program is committed to helping employees improve their skills and knowledge, providing staff with opportunities to take on additional responsibility, and fostering professional development. As such, a review process for each employee is typically conducted annually. The review process is an opportunity to highlight areas for growth, select professional development and/or training courses appropriate for the individual, and to establish goals for professional growth.

A performance review does not always result in an automatic salary increase, as it will be determined with market landscape, economic changes and company financials. Any off-cycle performance raises, will need authorization from HR and CEO.

## Regular Pay

*Pay Schedule*

Employees are paid bi-weekly, usually on the 8th and 22nd day of each month. When these days fall on a weekend or holiday, employees will be paid the preceding or following workday. HOPE Program encourages employees to be paid through direct deposit. If you are being paid through direct deposit, and need to change the account into which your pay is deposited change the information in Zenefits, as it can take up to one full payroll cycle for changes to take effect.

While we do not anticipate errors in employee pay, mistakes can happen. Please review your paychecks or paystubs and let Human Resources know if you find an error as soon as you notice it.

*Deductions from Pay*

Payroll will deduct all relevant federal and state taxes including income and social security and/or disability taxes. In addition, employees opting to participate in HOPE Program benefits such as health and retirement plans may have eligible deductions withheld via payroll on a pre-tax basis.



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*Pay Advances*
HOPE Program typically does not permit pay advances and any advance requires the approval of the CEO.

## WORK SCHEDULES

Core office hours are currently from 8:00 am to 8:00 pm, Monday to Saturday. Schedules may vary and your manager will provide you with information regarding your schedule.

## Exempt Employees Job Requirements

Some exempt employees work four days per week in order to meet the needs of our clients and to accommodate individual clinic schedules. Exempt employees are paid a salary to complete the requirements of their jobs and not for the actual hours that they work. So, while exempt employees with four-day work schedules may not typically be expected to work outside of their regular schedule, they will be required to do so if they are unable to complete all of their required work during the regular workweek.

## Timekeeping

Any employee found falsifying or otherwise damaging the accuracy of time records will be subject to discipline up to and including termination. All employees record their sick and paid time off hours taken in Zenefits. It is the responsibility of the employee to input their time off in Zenefits, accurately by the end of the pay period in which they took the time off and should be in alignment to their TreatAnyone schedule. Time-keeping policies may change from time to time, with or without warning. Non-exempt employees record their hours worked and meal breaks daily in Zenefits.

## Garnishments and Support Orders

HOPE Program must comply with all legal claims against the wages of employees. If we receive a wage garnishment order from taxing authorities, child support order, or some other legal claim against your wages, you will be notified about the amount and details of the order.

## Overtime for Non-Exempt Employees

Nonexempt employees may occasionally be required to work overtime. For purposes of determining which hours constitute overtime, only actual hours worked in a given workday or workweek will be counted. We will attempt to distribute overtime evenly and accommodate individual schedules. All overtime work must be authorized in writing and in advance by Clinical Director. HOPE Program provides compensation for overtime hours worked by nonexempt employees in accordance with state and federal law as follows:

All hours worked in excess of 10 hours per day or 40 hours in one workweek are overtime. The workday begins at 12:01 a.m. and ends 24 hours later. HOPE Program workweek begins each Sunday at 12:01 am.

Compensation for hours in excess of 40 for the workweek, or in excess of 8 and not more than 12 for the workday, and for the first 8 hours on the 7th consecutive day of work in one workweek, will be paid at a rate one and one-half times the nonexempt employee's regular rate of pay.



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Compensation for hours in excess of 12 in one workday and in excess of 8 on the 7th consecutive workday in a workweek will be paid at double the nonexempt employee's regular rate of pay.

Exempt employees may have to work hours beyond their normal schedules, as work demands require. No overtime compensation will be paid to exempt employees.

## Meal and Rest Periods (Non-Exempt Employees)

As required by law, HOPE Program provides non-exempt employees with an unpaid, off-duty meal break of at least thirty minutes for each five-hour period worked. In addition, non-exempt employees receive one ten-minute paid break for each four-hour work period. This break will come approximately at the mid-point of the work period and cannot be combined with the meal period. Non-exempt employees are required to take their meal and rest periods. A non-exempt employee who is not provided with a meal break permitted to take a rest break, or for any other reason does not take meal or rest breaks pursuant to this policy, must tell their Clinical Director and Human Resources, in writing, no later than the end of the workday.

We encourage all employees to schedule and take meal and rest periods during the work day. Non-exempt employees are required to do so.

## Lactation Accommodation

HOPE Program enables breastfeeding employees to express breast milk during work hours. HOPE Program will provide employees with the use of a room or a private area, other than a bathroom or toilet stall, that is shielded from view and free from intrusion from coworkers and the public. HOPE Program will make a reasonable effort to identify a location within close proximity to the work area for the employee to express milk. This location may be the employee's private office, if applicable.

Employees should discuss with Human Resources and/or manager the location for storage of expressed milk. Employees may also provide their own portable small storage unit or cooler for keeping expressed breast milk cold.

Please be sure to contact your Human Resources and/or manager during your pregnancy or before you return to work to identify your need for a lactation area.

Discrimination and harassment of breastfeeding mothers in any form are unacceptable and will not be tolerated.

## Pay for Mandatory Meetings/Training

HOPE Program will pay non-exempt employees at their regular hourly rate for attending meetings, lectures and training programs under the following conditions:

- Attendance is mandatory; or
- The meeting, course, or lecture is directly related to the employee's job and you obtain prior approval from your Clinical Director.



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- We do encourage employees to modify their work week schedule, when they have been notified of upcoming meeting/training.

Exempt employees attend meetings, lectures and training programs as part of their regular job duties and will not be compensated extra for doing so.

# Benefits

## Medical, Dental, and Vision Benefits

HOPE Program provides comprehensive medical, dental, and vision insurance plans for employees who regularly work at least 32 hours per week and for their dependents. Employees are eligible for coverage on the first of the month following 60 days of employment. For example, if your hire date is March 15th, you will be covered by the medical, dental and vision plans as of June 1st. HOPE Program pays for a portion of the premium for employee and their dependents. Benefits are administered through Zenefits and additional details are available through your account on the Zenefits portal. Zenefits classification will be full-time, but does not override HOPE Program's classification policy outlined in the "Employment Status" section of the handbook.

## Retirement Plan

HOPE Program provides a 401(k) plan for eligible employees in order to assist in planning for their retirement. HOPE matches employee contributions 100% up to the first 4% of the employee contribution. All eligible participants will receive a summary plan description within first year of employment along with registration link. For information regarding eligibility, contributions, benefits, and tax status, contact Human Resources.

## Workers' Compensation

In accordance with state laws, HOPE Program provides workers' compensation insurance for all employees. This coverage assists with medical expenses, vocational rehabilitation and some short- and long-term disability benefits if you have a disabling accident, illness, or injury while on the job. You are covered by workers' compensation from your first day on the job. Income replacement payments are based on wages earned.

It is critical that you inform your Clinical Director and Human Resources immediately about any work-related injury or illness, regardless of how minor it might appear at the time. Immediate reporting ensures that, if eligible, you will qualify for workers' compensation benefits as quickly as possible and also lets us investigate the matter promptly.

To ensure that you receive any workers' compensation benefits to which you may be entitled, you will need to:

- Immediately report any work-related injury;
- Seek medical treatment and follow-up care if required;
- Complete a written claim form and return it to Human Resources, who will file your claim with our workers compensation insurance carrier; and



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- Provide HOPE Program with a certification from your health care provider regarding the need for workers' compensation leave from work.

Neither HOPE Program nor our insurer is liable for the payment of workers' compensation benefits for any injury that arises out of an employee's voluntary participation in any off-duty recreational, social, or athletic activity that is not part of the employee's work-related duties.

Determinations regarding the length of leave and reinstatement will be made in accordance with applicable law.

***Benefit Continuation under Workers' Compensation***

- Insurance Benefits: HOPE Program will continue to cover its portion of an employee's insurance premiums for the first four months of an approved workers' compensation leave of absence. After four months, if still on leave, the employee may continue coverage at full cost to him or herself.
- The employee's next scheduled date for performance and salary review may be adjusted to reflect the time out under workers' compensation.
- Employees do not accrue paid time off on Workers' Compensation leave that lasts longer than 30 days.



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# TIME OFF

## Holidays

HOPE Program values and encourages celebrating key national holidays outside of the office with family and friends. Regular full-time employees are entitled to the following paid holidays observed by the Company:

- New Year's Day
- Martin Luther King, Jr. Day
- Memorial Day
- Independence Day
- Labor Day
- Thanksgiving and
- The day after Thanksgiving
- Christmas Eve
- Christmas Day

If a holiday falls on a Sunday, we will typically observe it on the following Monday. If the holiday falls on a Saturday, HOPE Program will typically observe it on the preceding Friday. Employees who are both eligible for paid holidays, and are not scheduled to work the day on which a holiday falls should arrange with their manager to find another day to take off in lieu of that day. "Make-Up" holidays must be taken within the same pay period of the actual holiday and must be approved in advance by the employee's manager. This approval must be submitted to Human Resources for tracking purposes. An employee who fails to take a make-up holiday within the allotted time period will forfeit that day.

Employees are not eligible for holiday pay while on any leave of absence.

## Paid Time Off (PTO)

HOPE Program believes that is important for employees to have time off from work to relax and take care of themselves. We offer paid time to give employees the flexibility to manage their time off as they see fit. Employees may use PTO vacation, sickness (in addition to the three sick days we provide), to attend a child's school activities, to care for elderly or ill family members, take care of personal errands or business, or simply to take a day off work.

All full-time employees at HOPE Program are eligible to participate in the PTO program after 90 days of employment. PTO accrual is based on tenure according to the schedule below:

| Years of Service | Accrual Rate | Days Per Year |
|---|---|---|
| Years 0-3 | 5 hours/pay period | 15 days per year |
| Years 4-7 | 6.67 hours/pay period | 20 days per year |
| Years 8+ | 8.33 hours/pay period | 25 days per year |



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Employees must submit a "Time Off Request" to their Clinical Director at least 30 days in advance with the detailed coverage plan proposal included in Zenefits. The exception to this is when an employee is out sick. HOPE Program will make every effort to approve time off requests, but may reject requests or require employees to reschedule time off (except in the cases of illness) under certain circumstances in order to ensure that we have enough workers to meet our business needs. Non-exempt employees must use PTO in increments of no less than one hour. Exempt employees with partial day absences, who have available accrued PTO and will have this time deducted from their PTO.

If circumstances, such as a medical or family emergency, prevent advance scheduling, you must inform your manager as soon as possible that you are taking paid time off. Because PTO encompasses PTO and sick leave, employees must manage their PTO responsibly to ensure that they have time available for emergencies, such as personal or family illness. Please note that employees who have run out of PTO may only take unpaid time off in the case of emergencies and may not take unpaid time for PTO. Unpaid time off requires approval by the CEO.

Employees may not accrue more than 240 hours of PTO. Once an employee's PTO balance reaches this limit, an employee may accrue more PTO only by taking some PTO to bring the employee's balance back below the limit. Employees do not accrue PTO while on any leave of absence.

Employees will be paid for any accrued and unused PTO when their employment ends.

Please note that absences from work for three consecutive days without notifying your direct Clinical Director may be considered grounds for termination.

**Sick Leave**

Employees will receive a lump sum of 24 hours of additional paid sick leave, which can be used starting on the 90th day of employment in no less than 2-hour increments. The paid sick leave is limited to a maximum of 24 hours that can be used in one year. At the end of each calendar year, unused paid sick leave expires. Starting at the beginning of each subsequent calendar year, the employee will receive a lump sum amount of 24 hours which is valid through the end of that calendar year. An employee whose employment has ended will not be paid for unused sick leave.

Sick leave is a form of insurance that is accumulated in order to provide a cushion for incapacitation due to illness. It is to be used only when actually required to recover from illness or injury; sick leave is not for "personal" absences. Time off for medical and dental appointments will be treated as sick leave in the case of non-exempt employees.

Employees may use sick leave for their own illness or to attend to a designated person, child, parent, sibling, grandparent, grandchild, spouse, domestic partner, or domestic partner's child who is ill. Sick leave may not be used for absences that are not medically related. Only one designated person maybe selected per calendar year.



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HOPE does not provide pay in lieu of unused sick leave. HOPE reserves the right to request verification of the reasons for use of sick time as permitted by law.

**State Disability Insurance (CA Employees)**

Each California employee contributes to the State of California to provide disability insurance pursuant to the California Unemployment Insurance Code. Contributions are made through a payroll deduction. Disability insurance is payable when an employee cannot work because of illness or injury not caused by employment at HOPE Program or when an employee is entitled to temporary workers compensation at a rate less than the daily disability benefit amount.

State Disability Insurance (SDI) payments do not begin until the employee is absent from work for seven calendar days. Employees may use available PTO or sick time for the first seven days before SDI payments begin and to supplement SDI payments thereafter. SDI benefits do not replace all of the employee's usual wages.

If you are eligible for group medical insurance from HOPE Program, you may continue coverage while on disability. HOPE Program will pay its portion of the premiums for a maximum of four months, during which time you will continue to be responsible for your portion of the insurance premiums. After four months, you will be eligible to continue coverage at full cost to you.

SDI pamphlets with specific rules and regulations governing disability are available from Human Resources.

**State and Federal Family and Medical Leave**

State and federal family and medical laws provide up to 12 work weeks of unpaid family/medical leave within a 12 month period, under the following conditions:

- The employee has more than 12 months of service;
- The employee has worked at least 1,250 hours during the previous 12 month period before the need for leave.

Leave may be taken for one or more of the following reasons:

- The birth of the employee's child, or placement of a child with the employee for adoption or foster care;
- To care for the employee's spouse, registered domestic partner, child or parent who has a serious health condition;
- A serious health condition that makes the employee unable to perform his or her job;
- Any "qualifying exigency" because the employee is the spouse, domestic partner, child, or parent of an individual on active military duty (or has been notified of an impending call or order to active duty) in the Armed Forces in support of a contingency operation; or
- An employee who is the spouse, son, daughter, parent, or next of kin of a covered service member will be entitled to a total of 26 workweeks of leave during a 12 month period to care for the injured service member.



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***Calculating the 12-month Period***

For purposes of calculating the 12 month period during which leave may be taken, HOPE measures backwards from the date an employee uses any family/medical leave.

Under most circumstances, leave under federal and state law will run at the same time and the eligible employee will be entitled to a total of 12 weeks of family/medical leave in the designated 12 month period.

However, leave because of the employee's disability for pregnancy, childbirth or related medical condition is not counted as time used under California law (the California Family Rights Act). Time off because of pregnancy disability, childbirth or related medical condition does count as family and medical leave under federal law (the Family and Medical Leave Act). Employees who take time off for pregnancy disability and who are eligible for family/medical leave will also be placed on Family and Medical leave that runs at the same time as their pregnancy disability leave. Once the pregnant employee is no longer disabled, she may apply for leave under the California Family Rights Act, for purposes of baby bonding.

Any leave taken for the birth, adoption, or foster care placement of a child does not have to be taken in one continuous period of time. Any leave taken must be concluded within one year of the birth or placement of the child with the employee.

***Requesting Leave***

The following procedure will apply when an employee requests family/medical leave:

- Please tell HOPE as soon as you realize the need for family/medical leave.
- If the leave is based on an expected birth, placement for adoption or foster care, or planned medical treatment for a serious health condition of the employee or a family member, the employee must notify HOPE at least 30 days before leave is to begin in order to minimize disruption to HOPE.
- If the employee cannot provide 30 days' notice, HOPE must be informed as soon as is practical.

If an employee cites his/her own serious health condition as a reason for leave, HOPE may request certification from the health care provider stating:

- Date of commencement of the serious health condition;
- Probable duration of the condition; and
- Inability of the employee to work at all or perform any one or more of the essential functions of his/her position because of the serious health condition.

HOPE may also require certification by the employee's health care provider that the employee is fit to return to his or her job. Failure to provide certification by the health care provider of the



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employee's fitness to return to work will result in denial of reinstatement for the employee until the certificate is obtained.

If the Family and Medical Leave Act/California Family Rights Act request is made because of the employee's own serious health condition, HOPE may require, at its expense, a second opinion from a health care provider that HOPE chooses. The health care provider designated to give a second opinion will not be one who is employed on a regular basis by HOPE.

If the second opinion differs from the first opinion, HOPE may require, the employee to obtain the opinion of a third health care provider designated or approved jointly by the employer and the employee. This will be at employee's expense. The opinion of the third health care provider will be considered final and binding on HOPE and the employee.

HOPE requires the employee to provide certification within 15 days of any request for family/medical leave under state and federal laws, unless it is not practicable to do so. HOPE may require recertification from the health care provider if additional leave is required.

If the leave is needed to care for a sick child, spouse, registered domestic partner or parent, the employee may be asked to provide a certification from the health care provider stating:

- Date of commencement of the serious health condition;
- Probable duration of the condition;
- Estimated amount of time for care by the health care provider; and
- Confirmation the serious health condition warrants the participation of the employee.

A leave taken due to a "qualifying exigency" related to military service must be supported by a certification of its necessity. A leave taken due to the need to care for a service member must be supported by a certification by the service member's health care provider.

***Health and Benefit Plans***

An employee taking family/medical leave will be allowed to continue participating in any health and welfare benefit plans in which he/she was enrolled before the first day of the leave (for a maximum of 12 work weeks) at the level and under the conditions of coverage as if the employee had continued in employment for the duration of such leave. HOPE will continue to make the same premium contribution as if the employee had continued working. The continued participation in health benefits begins on the date leave first begins under the Family and Medical Leave Act (e.g., for pregnancy disability leaves) or under the Family and Medical Leave Act/California Family Rights Act (e.g., for all other family care and medical leaves). If the employee fails to return to work following family/medical leave, HOPE may, in some instances, require an employee to reimburse HOPE for premiums paid to maintain health coverage during the leave. If the employee has dependent insurance coverage or covers a portion of his/her own premiums, those premiums will continue to be due each month. A check made payable to HOPE is due at the end of the month.



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Employees on family/medical leave who are not eligible for continued paid coverage may continue their group health insurance coverage through HOPE in conjunction with the federal COBRA guidelines by making monthly payments to HOPE's outside COBRA administrator for the amount of the applicable premium.

***Substitution of Paid Leave***

Employees may use sick or PTO time in the following circumstances:

- PTO must be used for any family/medical leave qualifying event except for leave that runs concurrent with Pregnancy Disability Leave.
- Sick leave must be used by the employee for the employee's own serious health condition.
- Sick leave may be used for the care of a family member.
- Sick leave may be used for the birth or placement for adoption or foster care of a child if mutually agreed upon by HOPE and the employee.

***Reinstatement***

Under most circumstances, upon return from the family/medical leave, an employee will be reinstated to his or her original job or to an equivalent job with equivalent pay, benefits, and other employment terms and conditions. However, an employee has no greater right to reinstatement than if he or she had been continuously employed rather than on leave. For example, if an employee on family/medical leave would have been laid off had he or she not gone on leave, or if the employee's job is eliminated during the leave and no equivalent or comparable job is available, then the employee would not be entitled to reinstatement. In addition, an employee's use of family/medical leave will not result in the loss of any employment benefit that the employee earned before using family/medical leave.

***Carryover***

The 12 month period is measured backward from the date any employee uses any family/medical leave. No carryover of unused leave from one 12 month period to the next 12 month period is permitted.

***Intermittent Leave***

Employees may take Family and Medical Leave Act/California Family Rights Act leave intermittently if the leave is for the serious health condition of the employee or the employee's child, parent, or spouse, or registered domestic partner of the employee, and the reduced leave schedule is medically necessary as determined by the health care provider of the person with the serious health condition. The smallest increment of time that can be used for such leave is fifteen minutes.



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If Family and Medical Leave Act/California Family Rights Act leave is taken for baby bonding, generally it must be taken at least two weeks at a time.

When leave is taken for baby bonding, and both parents work for HOPE, HOPE will limit the two employees to a combined total of 12 weeks of family leave. Baby bonding includes babies born to an employee, or the adopted or foster child of an employee. Baby bonding leave must be taken within one year of the baby's birth or the start of adoption or foster care.

**California Paid Family Leave (PFL)**

California-based employees may be eligible for partial wage replacement benefits under the California Paid Family Leave Act for up to a maximum of six weeks for the following reasons:

- To bond with a new child after birth or placement for adoption or foster care;
- To care for a serious health condition of an employee's child, parent, parent-in-law, sibling, grandparent, grandchild, spouse, or registered domestic partner.

The California Paid Family Leave Act provides benefits based on past quarter earnings for up to six weeks in a 12-month period. The 12-month period begins on the first day an employee submits a claim. Employees may use available PTO to supplement PFL payments.

To be eligible for this benefit, employees may be required to provide medical and/or other information that supports a claim for time off to bond with a new child or to care for eligible family members with a serious health condition.

The employee is responsible for filing their claim for family leave insurance benefits and other forms promptly and accurately with the Employment Development Department. All eligibility and benefit determinations are made by the Employment Development Department.

Paid Family Leave does not provide a right to leave, job protection or return to work rights. Further, this policy does not provide additional time off.

If you are enrolled in HOPE Program group medical insurance, the Company will continue to pay its portion of the premiums while you are out on PFL, during which time you will continue to be responsible for your portion of the insurance premiums.

**Leaves of Absence (General Provisions)**

HOPE Program may grant a leave of absence in certain circumstances. It is important to request any leave in writing as far in advance as possible, to keep in touch with your Clinical Director and Human Resource during your leave, and to give prompt notice if there is any change in your return date.

HOPE Program may temporarily postpone or proceed with any counseling, performance review, or disciplinary action, including discharge, that was contemplated prior to the request for a leave of absence, or that has come to the Company's attention during the leave. If action is postponed



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during the leave of absence, the Company reserves the right to proceed with the action upon the employee's return. Requesting or receiving a leave of absence in no way relieves an employee of their obligation while on the job to perform job responsibilities capably and up to the Company's expectations, and to observe all HOPE Program policies and procedures.

Acceptance of other employment while on leave will be treated as a voluntary resignation from HOPE Program. Leave of absence requires prior written consent from the CEO or Executive Clinical Director.

**California Pregnancy Disability Leave (PDL)**

If you are female in California, you are entitled to an unpaid leave of absence due to disability during the time that you are actually disabled by pregnancy, childbirth or related medical conditions. For "normal" pregnancies (i.e., the pregnancy or childbirth involves neither high risk nor medical complications and an employee works up to the time of delivery), you are entitled to six weeks unpaid leave of absence. You may take this leave as needed for all disabilities related to each pregnancy. With medical certification, pregnant employees may be eligible for up to a total of four months of disability leave.

Please speak with Human Resources if you have any questions about pregnancy-related leaves of absence.

All female employees should advise their manager of their intent to take PDL as soon as possible. The following conditions apply to pregnancy disability leave:

- You must provide at least verbal notice to HOPE Program if you need to take a pregnancy disability leave and/or transfer. The verbal notice should include the anticipated timing and duration of your leave or transfer.
- If your need for the leave or transfer is foreseeable, you must provide at least 30 days' advance notice before the PDL or transfer is to begin. If 30 days' advance notice is not possible, notice must be given as soon as practical.
- Pregnancy Disability Leave may be taken in one or more periods, but may not exceed four months in total. "Four months" means the number of days you normally work in a four-month period. For a full-time employee who works five eight-hour days per week, "four months" means 88 working and/or paid eight-hour days of leave entitlement based on an average of 22 working days per month for four months. Part-time employees are entitled to leave on a pro-rated basis.
- The four-month PDL allowance includes any time taken by you for which you are unable to perform any one or more of the essential functions of your job, time in which you are unable to work at all because of any medically recognized physical or mental condition related to pregnancy or childbirth (including morning sickness), or time off for prenatal care as well as the successful completion of the pregnancy.
- Leave returns will be allowed only when your physician, or pregnancy care provider, sends a release.



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- The duration of the leave will be determined by the advice of your physician, but disabled employees may take up to a maximum of four months. The four months of leave includes any period of time for actual disability caused by your pregnancy, childbirth or related medical condition.
- Leave does not need to be taken in one continuous period of time and may be taken intermittently, as needed.
- Under most circumstances, upon submission of medical certification that you are able to return to work from a PDL, you will be reinstated to the same position you held at the time your leave began. If this position is not available, a comparable position will be offered. If neither the same nor a comparable position is available, you will be considered, based on your qualifications, for other job openings existing at the time of your scheduled return.
- You may use accrued PTO or sick time to help bridge the difference between any State disability pay you may be eligible for and your regular HOPE Program compensation.
- You may use accrued PTO or sick time for the first seven days before SDI payments begin.
- If you are eligible for group medical insurance from HOPE Program, you may continue that coverage during your leave. You will continue to be responsible for your portion of insurance premiums while on leave.

HOPE Program will maintain health coverage during the period of actual disability, up to a maximum of four months. In some instances, we may recover premiums we paid to maintain health coverage if you fail to return to work following your pregnancy disability leave. If you are not eligible for continued group health insurance coverage, then you may continue your coverage through the Company, in conjunction with federal COBRA guidelines, by making monthly payments for the amount of the relevant premium.

**The California Family Rights Act (CFRA)**

The California Family Rights Act (CFRA) provides eligible employees the opportunity to take unpaid, job-protected leave for certain specified reasons. The maximum amount of leave employees may use under this policy is twelve (12) weeks within a 12-month period. For more information regarding leave under this policy, employees should contact human resources.

To be eligible for CFRA leave, employees must:

- Have worked at least twelve (12) months for HOPE Program in the preceding seven years (limited exceptions apply to the seven-year requirement).
- Have worked at least 1,250 hours for HOPE Program over the twelve (12) months preceding the date the leave would commence.
- All periods of absence from work due to or necessitated by service in the uniformed services are counted as hours worked in determining eligibility.



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CFRA leave may be taken for any of the following reasons:

- To care for or bond with a newborn child.
- To care for or bond with a child placed with the employee and/or the employee's registered domestic partner for adoption or foster care.
- To care for an immediate family member (employee's spouse, parent, parent-in-law, registered domestic partner, child or registered domestic partner's child of any age, sibling, grandparent, grandchild or designated person) with a serious health condition.
- Because of the employee's serious health condition that makes the employee unable to perform his or her job (with the exception of pregnancy, which is covered under Pregnancy Disability Leave and does not run concurrently with CFRA).
- A qualifying military exigency related to the covered active duty or call to covered active duty of an employee's spouse, domestic partner, child (of any age) or parent in the United States armed forces, as specified in Section 3302.2 of the Unemployment Insurance Code.

**Jury Service Leave**

HOPE Program supports employees in fulfilling their responsibilities to serve as jurors whenever possible. However, we reserve the right to ask employees to request postponement of jury service if the absence from work would create a hardship to the Company. Employees may use accrued PTO for time off due to jury duty. Otherwise, time will be unpaid.

Any fees received for jury duty, including travel fees may be kept by the employee. Employees are to report to work on any day, or portion thereof that is not actually spent in the performance of jury service. Upon the employee's return to work, he or she must provide proof from the court showing that he or she was assigned jury duty during the date(s) in which he or she was absent from work.

**Voting Time Off**

HOPE Program encourages employees to vote. If you are unable to vote before or after working hours in statewide public elections, you will be allowed up to two hours of paid time off in which to vote. Employees must give reasonable notice of the need to have time off to vote and must give at least three days' notice when possible.

**Bereavement Leave**

Employees who need to take time off due to the death of an immediate family member should notify their Clinical Director as soon as possible. Bereavement leave of up to 5 days will be granted unless there are unusual business needs or staffing requirements. HOPE will provide up to 3 paid days of leave. Exceptions to this must be approved by the CEO.

HOPE Program defines "immediate family" as the employee's spouse/domestic partner, child, stepchild, parent, stepparent, sibling or stepsibling, aunt, uncle, cousins, grandchild, grandparent, parent or child-in-law. HOPE Program recognizes that there are other circumstances when an employee may request time for bereavement, such as the death of a



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close friend or family member not included in the definition above. Please talk to your Clinical Director should these circumstances arise.

## Leave for Special Conditions

HOPE Program will work with individuals who have personal obligations or special circumstances to accommodate those needs as appropriate. Examples of those special conditions follow.

*Military Leave*

Unpaid military leave of absence will be provided in accordance with federal and state law. Employees who are members of the National Guard or Armed Forces Reserve, and participate in an annual two-week active duty or training program, must provide reasonable advance notice to their Clinical Director.

*Emergency Service Leave*

Staff who serve as firefighters, peace officers, or emergency rescue personnel may be required to be absent during regular work hours under certain conditions. HOPE Program will provide for paid leave when exempt employees are called for emergency service for any week in which s/he performs work for the Company. Any leave other leave time will be unpaid unless the employee uses PTO time.

*Time Off for Victims of Violent Crimes and Domestic Violence*

HOPE Program will provide leave for eligible employees to participate in relevant judicial proceedings, and will provide for paid leave to an exempt employee for any week in which s/he performs work for the Company. Any leave other leave time will be unpaid unless the employee uses sick time.

*Time Off for School Activities*

Employees are encouraged to participate in their children's school activities. Leave for school activities is subject to all of the following conditions:

- Parents, guardians, or grandparents having custody of one or more children in kindergarten or grades one to twelve may take time off for a school activity;
- The time off for school activity participation cannot exceed eight hours in any calendar month, or a total of forty hours each school year;
- Employees planning to take time off for school visitations must provide as much advance notice as possible to their Clinical Director;
- If both parents are employed by HOPE Program, the first employee to request such leave will receive the time off. The other parent will receive the time off only if the leave is approved by his or her Clinical Director.

## Other Legally Required Leaves of Absence

HOPE Program will provide all other federal, state, or local leaves of absence as required by law.



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# POLICIES

## Adherence to Organization Policies

You are legally obligated to comply with and implement all of HOPE Program's policies in the performance of your duties.

## Confidential Information

Upon hire, all HOPE Program employees are required to sign and comply with a "Confidentiality Agreement". Confidential, proprietary and trade secret (collectively referred to as "confidential") information about HOPE Program, its clients and vendors is to be kept confidential and divulged only to individuals within HOPE Program who have a business need to receive, and who are authorized to receive, such information. If in doubt as to whether information should be divulged, err in favor of not divulging information and discuss the situation with your Clinical Director.

All confidential business records and files remain the property of HOPE Program. These records and files are not to be disclosed to any outside party without the express written permission of Shannon Smith or as required by law. "Confidential Information" refers to a piece of information, or a compilation of information, in any form (on paper, in an electronic file, or otherwise), related to HOPE Program's business that HOPE has not made public or authorized to be made public, and that is not generally known to the public through proper means. Confidential information includes, but is in no way limited to HOPE Program's operations, procedures or practices, business and development strategies, marketing strategies, forecasts, financial records, curriculum, pricing, research or development, information regarding vendors or suppliers, information concerning insurance companies, information pertaining to clients or their families, including but not limited to offense history, client lists, medical information or insurance information. Such confidential business information may not be removed from HOPE Program premises without express written authorization.

Confidential business information may not be used for any type of research without express written authorization.

Confidential business information obtained during or through employment with HOPE Program may not be used by any employee for the purpose of furthering current or future outside employment, including self-employment, or for obtaining personal gain or profit. The duty not to use or disclose confidential business information remains in effect during and after employment. HOPE Program reserves the right to avail itself of all legal or equitable remedies to prevent impermissible use of confidential information or to recover damages incurred as a result of such impermissible use of confidential information.

Confidential information obtained from other sources, namely prior employers, should not be used or disclosed in your current position.

Employees must comply with the laws and regulations that govern the rights to and protection of the copyrights, trademarks, patents, trade secrets, and other forms of intellectual property that belong to HOPE Program as well as those that belong to others.



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In the event that an employee is required by law or regulatory authority or otherwise becomes legally compelled (by court or litigation proceedings, subpoena, criminal or civil investigative demand or similar process) to disclose any confidential information, HOPE Program will comply with all legal and contractual obligations.

Any employee who willfully discloses confidential information either internally or externally, absent being legally compelled to do so, is subject to discipline up to and including termination.

**Ownership**

As an employee of HOPE Program all material created in the scope of your employment or using our resources is owned by HOPE. This includes but is not limited to curriculum and program development, trainings, etc.

**Conflicts of Interest**

Employees who have personal or outside interests that may conflict with HOPE Program's interests must discuss those issues with the CEO to reach agreement on how to resolve the potential conflict.

**Employment of Relatives**

HOPE Program permits the employment of qualified relatives of employees as long as such employment does not, in our opinion, create actual or perceived conflicts of interest. For purposes of this policy, a "relative" is a spouse, domestic partner, child, parent, sibling, grandparent, grandchild, aunt, uncle, first cousin, or corresponding in-law or "step" relation. This policy applies to all categories of employment at HOPE Program, including contractors and freelancers.

If relatives are employed by HOPE Program, one may not supervise the other or work in the same department. In addition, if a potential candidate for an open position is a relative, or potential relative of an employee, the employee must disclose this information to his/her Clinical Director. Employees may not make employment (including hiring and firing) decisions about relatives.

**Dress Code and Appearance**

The dress code at HOPE Program is business casual in the office and should be adapted appropriately for any external meetings.

Please note that employees may not wear tennis shoes or flip flops, sweatshirts, t-shirts, sweatpants, or baseball caps, or attire that is too revealing, tight or low cut. Employees may only wear jeans on Fridays. Jeans may not be faded, ripped or torn. In addition, all facial, and visible offensive or inappropriate tattoos must be concealed.

Employees are expected to use their judgment in proper grooming and choice of clothing that is appropriate for the workplace and representative of the HOPE Program's professionalism and



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values. HOPE Program retains ultimate determination of appropriate dress and may send any employee home to change if we determine it to be necessary.

## Employment References

HOPE Program policy is to disclose only the dates of employment and the title of the most recent position held by both current and former employees. If you authorize the disclosure in writing, we may also inform prospective employers of the salary or wage you last earned. HOPE Program will provide additional information in response to employment reference requests only after receiving a signed copy of the "Reference Release Form" by the employee or former employee. Please speak with Human Resources for additional information.

## Electronic Communication Policy

Access to HOPE Program's communication tools (including, but not limited to, computers, servers, Internet services, phone service, voice mail and email systems) is provided to facilitate business-related communications and to fulfill job responsibilities.

Under no circumstance is HOPE Program property to be used to solicit, lobby, harass, offend or engage in any unlawful or inappropriate purpose. This includes, for example, using equipment to obtain or share sexually explicit, profane, harassing, discriminatory, or disparaging materials.

Electronic forgery is never allowed. Employees may never use another person's e-mail account to misrepresent the identity of the sender of any message.

Limited personal use of our electronic resources is permissible, so long as it is reasonably limited in terms of time and cost, is not for an unlawful or inappropriate purpose, and does not interfere with or cause harm to HOPE Program or any of its employees.

All information that is created during your employment at HOPE Program belongs to HOPE Program. Therefore, we reserve the right to access, monitor, and review any information, including email, which is created or stored in any fashion on HOPE Program property, or on services provided by HOPE Program. Employees should use discretion when sending or storing confidential or sensitive information or messages.

Misuse or abuse of HOPE Program's electronic equipment and media will result in disciplinary action, up to and including termination.

## Use of Telephones and Personal Cell Phones

While you are at work, you are expected to perform your job duties and responsibilities. Personal calls/text messages and emails should be brief, infrequent, and should be limited to break time. Employees are not permitted to use their cell phone or the business phones around clients, except in the case of an emergency and after requesting permission from a Clinical Director.

Employees are provided with a desk phone or a virtual phone application which they should use to make all work phone calls. If an employee chooses, for convenience, to use a personal cell



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phone for work calls, the employee use RingCentral or an agency approved app to make all phone calls to clients and referrals. RingCentral protects the employee's privacy. Employees may not give their personal cell phone number to clients. Employees should not make personal long distance calls using HOPE Program telephones.

Employees who regularly attend containment meetings, or have other regular business obligations outside of the office, or frequently travel on business and use their personal cell phone for business purposes are eligible for reimbursement from HOPE. Please speak to the CEO for details.

Employees are expected to return all HOPE related business calls including but not limited to calls from clients, referring officers and your Clinical Director within 24 hours.

**Use of Personal Devices**

In order to protect confidential client and employee information, Employees and Contractors are prohibited from saving any client documents on personal devices. At no time will any client information be downloaded or stored on personal devices, including, but not limited to client files, supporting legal documents related to client caseloads, or any information whatsoever containing Personal Identifiable Information (PII) or Electronic Personal Health Information/Personal Health Information (ePHI/PHI) relating to HOPE Program's clients or employees.

Creating client reports and other clinical documentation on personal devices is permitted *only* if the following conditions are met:

1. Management approval
2. The device utilizes full disk encryption
3. All drafts and final copies of any client or employee-related documents are destroyed
4. A dedicated or shared HOPE Program's device is not available or has not been issued to the Employee or Contractor

Use of any kind of portable media devices, including, but not limited to external hard drives, memory sticks, and backup devices is **strictly prohibited**.

HOPE Program logs and periodically reviews all download, syncing, and access activity for Google Drive as well Online Clinical Manager (OCM), and TreatAnyone (TA).

**Use of HOPE Program's Devices**

If a HOPE Program's laptop or other hand-held device has been issued to an Employee or a Contractor, the Employee or Contractor *must* use this device for all business relating to HOPE Program. A substitute personal device may not be used in its place.



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Downloading or installing any personal files or software on HOPE Program's devices is strictly prohibited.

Tampering with or changing the system settings on HOPE Program's devices is strictly prohibited.

**Data Privacy Practices and HIPAA Compliance**

HOPE Program takes client and employee data protection seriously. Any documents containing PII or ePHI must be properly filed in secure filing cabinets. Documents which are no longer needed must be shredded or destroyed using a commercial service. At no time will any documents containing confidential information be left unattended where they can be viewed by unauthorized persons.

Each Employee and Contractor must sign a HIPAA Confidentiality Statement certifying adherence to rules mandated by law and their implementation by HOPE Program.

**Password Management**

Electronic access to systems containing confidential information is password protected. Use of strong passwords is required for laptops, hand held devices, email, case management systems, networks, monitoring systems, and any other electronic platforms that record, store, or capture confidential information.

User passwords must be changed at least every 90 days.

**Inspection/Access to HOPE Program Property**

Desks, closets, file cabinets, boxes, credenzas, computers, software programs, voice mail systems, cell phones, or other storage devices may be provided for your convenience but remain the sole property of HOPE Program.

If a business need were to arise we reserve the right to conduct a routine inspection at any time of HOPE Program property. Searches in any physical space owned or controlled by HOPE Program may also be conducted for other business-related purposes such as discovery of drugs, drug paraphernalia, misappropriated HOPE Program and/or employee property, etc.

We may access computer files, e-mail and/or voice mail for any business-related purpose (e.g., monitoring employee performance, assuring compliance with HOPE Program rules and procedures, following up on a departing employee's work in progress).

Routine searches or inspections for HOPE Program property may include your office, desk, file cabinet, closet, HOPE Program-owned vehicle, phones, voice mail, computer files or similar places where you may place or store company property or related information, whether or not such places are locked or protected by access codes. Because even a routine search of HOPE property might result in the discovery of your personal possessions, you are encouraged not to bring into the workplace any item of personal property that you do not want to reveal to HOPE Program.

## Prohibited Conduct

The following conduct is prohibited and will not be tolerated by HOPE Program. This list of prohibited conduct is illustrative only; other types of conduct injurious to security, personal safety, employee welfare and HOPE Program's operations also may be prohibited.

1. Failure to be certified and in good standing with the California Sex Offender Management Board (CASOMB).
2. Failure to adhere to and maintain good standing with required California licensing boards (e.g., Board of Behavioral Science and/or the Board of Psychology).
3. Failure to adhere to the established ethics, standards, and practices of the Association for the Treatment of Sexual Abusers (ATSA).
4. Failure to maintain timely and accurate records on your assigned caseloads.
5. Falsification of any client-related documents, including those that must be completed or submitted under applicable law, as well as court documents.
6. Failure to return all HOPE-related business calls within 24 hours.
7. Falsification of employment records, employment information or other HOPE Program records.
8. Recording the work time of another employee, allowing any other employee to record your work time, or falsifying your own or another employee's time records.
9. Working overtime without prior written authorization from your Supervisor, Clinical Director or refusing to work overtime.
10. Failure to observe work schedules, including rest and meal periods.
11. Theft, deliberate or careless damage or destruction of any HOPE Program property or the property of any employee or subtenant.
12. Removing or borrowing HOPE Program property without prior authorization.
13. Provoking a fight or fighting during working hours or on HOPE Program property.
14. Carrying firearms or any other dangerous weapons during working hours or on HOPE Program premises at any time.
15. Engaging in criminal conduct whether or not related to job performance.
16. Abusive conduct or language.
17. Insubordination, including but not limited to failure or refusal to obey the legitimate orders or instructions of a Clinical Director, Supervisor or member of management, or the use of abusive or threatening language toward any employee, including a Clinical Director, Supervisor or member of management.
18. Failure to obtain permission to leave work during normal working hours, other than during normal break periods.
19. Failure to provide a physician's certificate when requested or required to do so.
20. Excessive use of company phones or email for personal use during or after regular business hours.
21. Committing a fraudulent act or breach of trust under any circumstances.
22. Failure to follow HOPE Program's "Ethics Guide."
23. Use of threatening language in conversations with other employees and/or intimidating or interfering with other employees.



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24. Excessive absenteeism or tardiness, and/or failing to notify your Clinical Director in a timely manner if you are unable to report to work.
25. Failure to report a job-related accident to the employee's manager or failure to take or follow prescribed tests, procedures or treatment.
26. Failure to possess or maintain the credential, certificate, or license required of the position.
27. Being intoxicated at work.

This statement of prohibited conduct does not alter HOPE Program's policy of at-will employment. Either you or HOPE Program are free to terminate the employment relationship at any time, with or without reason or advance notice.

**Ethical Standards and Clinical Best Practices**

HOPE Program insists on the highest ethical standards in conducting its business. When faced with ethical issues, employees are expected to make the right professional decision consistent with HOPE Program's principles and standards. If you encounter an ethical issue you are not sure how to handle, please speak your Clinical Director or Supervisor.

All employees and contractors must adhere to clinical best practices, applicable mental health treatment standards, and HOPE Program's procedures, as described in the Treatment Manual. In cases in which HOPE Program has contractual agreements with referrers whose requirements deviate from the standards in the Treatment Manual, those contractual agreements take precedence. Employees and contractors must be familiar with their clients' treatment plan requirements.

**Over Familiarization Policy**

Given the nature of our work and the environment in which we conduct our services, it is important that we observe basic safety practices. It is important to take measures to reduce risk as much as possible.

Familiarity or overfamiliarity with our clients must be closely monitored to ensure it does not happen. Overfamiliarity means engaging in conversations or any type of communication that includes personal topics. No employee may engage in familiarity with parolees or clientele who are referred to the HOPE Program. Conversations shall be limited to work and treatment-related topics only.



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The behaviors listed below may place an employee at risk of developing an inappropriate relationship with an offender:

- Looking forward to seeing a particular client when you come to work.
- Doing things with a client you would not want your family or Supervisor to know about.
- Being reluctant to have a co-worker observe your behavior for an entire day.
- Talking about personal matters with client.
- Asking an offender to do personal favors for you.
- Receiving personal advice from a client.
- Saying anything to a client you would not want tape recorded.
- Having fantasies of touching a client.
- Believing that you have the right to touch a client.
- Looking forward to sharing good or bad news with a particular client.
- Thinking clients are not allowed to say "no" to you, no matter what you ask.
- Allowing clients to talk about sexual experiences or sexual fantasies, beyond what is treatment appropriate
- Allowing clients to talk about or telling sexual jokes in your presence.

To ensure the safety of our employees and clients:

- Do not keep any secrets with a client at any time.
- Do not offer to hire, or provide any money to a client at any time.
- Do not give gifts to clients.
- All services are to be conducted during the business hours of the agency. Any service outside of standard operating hours requires prior written authorization from the CEO.
- After conclusion of the group, ensure all members of the group leave the building together. In the evenings, no clinician should ever stay behind and alone with a client when no other people are nearby.
- All communication with clientele should take place in a HOPE office. Do not engage in conversations with a client outside of the office. For example, do not have conversations with clients in the hallway, sidewalk, or any environment that is outside of the HOPE clinic.
- All interactions with clientele are to remain professional and appropriate at all times.
- All social media connections and/or sharing personal contact information with clients is strictly prohibited. This includes, but is not limited to:
    a. Do not friend any clients on Facebook.
    b. Do not share, follow, or engage in any other forms of social media with clients (e.g., Instagram, Snapchat, etc.).
    a. Do not share any personal photos or videos with clients at any time.



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b. Do not take a picture with a client.
c. Do not hug a client.
d. Report any and all suspicious, flirtatious, or concerning behavior to your Supervisor, the clinical director and Human Resources on the same day the incident occurred.
e. Do not share your personal home or cell phone number, text, email, or contact a client on your personal phone. Use your provided work number and extension for all client communications.
f. All email communications received from clients must be saved in their client file; clinicians do not provide therapy via electronic communication (e.g., email or text).
g. Texting clients is prohibited.

- If you have any questions about your safety with any client in any context, end the session or contact with the client. Excuse the client from the office and immediately contact your Clinical Director or Supervisor.
- In any situation where there is a concern for your physical safety or that of others, immediately end group or individual session and call 911.
- All clients are to walk in front of staff members, to avoid clients being out of an employee's line of sight.
- Employees and clients are to take separate elevators when arriving and leaving the building.
- During all sessions, clinicians are to sit by the door to ensure their access to an exit is not blocked, should a client turn violent.
- In any situation where there are concerns that a client may be suicidal or homicidal, see the suicidal assessment procedures to initiate a 5150.
- In clinics where you are working with other employees during normal operating hours, notify your colleagues that you are leaving for lunch, taking a break outside of the office, or when you leave the office for the day.
- Clients who bring book bags (or any type of bag) to treatment are to store them in a designated area of the treatment room, away from their person. They can collect the book bag at the end of the session.
- Clients are not allowed to take book bags into the restroom in order to prevent theft, drug use, or consumption of alcohol.
- Clients may only go to the bathroom by themselves and not in pairs or in a group, to prevent theft, drug use, or consumption of alcohol.



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## Business Gifts

Advance approval from management is required before an employee may accept a gift of any kind from a client. Employees should report gifts greater than $20 in value to their Clinical Director or Supervisor. All gifts received from clients must be intended for, and shared with, the entire clinic (e.g., a box of donuts). Employees are not permitted to give gifts to clients.

## Recording and Reporting Information

Every employee must record information in an accurate and honest manner. Examples of such information are: time worked, financial data, and expense and travel reports.

Dishonest accounting of information is strictly prohibited. Honest recording includes providing or organizing information in a manner that is not intended to mislead or misinform those who receive it.

It is each employee's responsibility to immediately report any and all irregularities indicating actual or suspected existence of loss, fraud, embezzlement, or similar impairment of Company funds or property and suspicious persons or activity.

If an employee's actual or constructive knowledge of any irregularity exists and the employee fails to report it to their Clinical Director or Supervisor, the employee may be subject to disciplinary action up to and including termination. There will be no retaliation against any employee who reports any such issue or irregularity in good faith.

## Off-Duty Conduct

While HOPE Program does not seek to interfere with employees' off-duty and personal conduct, certain types of off-duty conduct may interfere with our legitimate business interests. Employees are expected to conduct their personal affairs in a manner that does not adversely affect HOPE Program's or their own integrity, reputation or credibility. Illegal off-duty conduct that adversely affects HOPE Program's legitimate business interests or the employee's ability to perform his or her job will not be tolerated.

## Social Media

In the rapidly expanding world of electronic communication, social media can mean many things. Social media includes all means of communicating or posting information or content of any sort on the Internet, including to your own or someone else's blog, personal web site, or social networking site, whether or not associated or affiliated with HOPE, as well as other forms of electronic communication.

When using the Internet in your capacity as an employee, your conduct should be consistent with appropriate conduct in the workplace.



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Whether for personal or professional use, please refer to the policy below when you communicate through social media about HOPE Program. As a staff member be responsible, accountable, and ethical:

- Respect copyright, fair use, and financial disclosure rules and laws. If you are concerned that what you are writing might be in conflict with these, please ask.
- Respect confidentiality and intellectual property: do not reveal confidential business information, customer information, or trade secrets. Including but not limited to any legal matters related to employment or business matters.
- Respect others: write in good taste, do not denigrate or harass others. Refrain from hostility or any behavior that would not be acceptable in the workplace.
- Show responsibility: you are personally responsible for any content that you choose to publish online. Please remember that once published it will remain on the record.

When commenting about the Company:

- Be transparent. Clearly disclose your identity and your relationship to the Company. Include a disclaimer that you are speaking in your own name, and you are not a spokesperson for the Company.
- Write specifically about your experience: beware of writing outside your area of expertise.
- Do not make general claims or false claims about the Company.
- Statements should be truthful and substantiated through published information.
- When identifying yourself as a member of our staff or commenting about the Company, be sure that your profile is consistent with how you wish to present yourself in the workplace, with business partners, or with coworkers, and expect that your Supervisor, Clinical Director and management will read what you post.
- Beware that when you post links to outside sites you may imply endorsement of the contents of those sites and if you have identified yourself as connected with the Company, do not link to or endorse anything that contradicts with or undermines the Company's values.

Be Mindful – Social Media Postings:

- Be careful of what you post: your information will be available on the record for a long time.
- Be aware of where, when, and how you denigrate any person or the Company, including your colleagues or the Company. Do not post anything that could be considered discriminatory, harassing or bullying toward another person.
- Should you post something in error, be sure to amend it as soon as possible.
- Be careful with personal information, as it will be available to the public online.

Stay Focused:
Social Media use for personal use is prohibited during working hours. Please note that failure to abide by guidelines could result in disciplinary action up to, and including termination.



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## Outside Employment

It is expected that employment with HOPE Program will be the major focus of all employees' professional lives. Employees are required to notify HOPE Program before accepting outside employment. Situations in which a conflict of interest may exist include, but are not limited to:

- Outside employment which conflicts with, or otherwise impacts, your regularly scheduled working hours or availability for mandatory overtime work. Employees may not perform any work for outside employment, including taking calls from private practice clients, during HOPE work hours.
- Outside employment which adversely affects HOPE Program operations and/or other HOPE Program employees.
- Outside employment which requires you to make use of HOPE Program's resources.
- Outside employment that creates a conflict of interest with HOPE Program's work. This includes any work that involves forensic mental health services.

Any employee holding a job with another organization are required to report this to Human Resources and are expected to demonstrate satisfactory performance in his or her responsibilities at HOPE. All employees are measured by the same performance standards and are subject to the same scheduling demands, regardless of any outside work requirements. Employees are cautioned to consider carefully the demands that additional employment will create before accepting outside employment. Outside employment will not be considered an excuse for poor performance, absenteeism, tardiness, leaving early, or refusal to work scheduled hours or overtime. If outside work causes or contributes to job-related problems, normal disciplinary procedures will be followed to address the concerns.

Employees who have accepted outside employment may not use paid sick leave to work on the outside job. Fraudulent use of sick leave will result in disciplinary action up to and including termination.

If outside employment or activities appear to reduce or limit your effectiveness on the job, or create a conflict of interest, you may be asked to give up such activity. Refusal to comply with a request to terminate such activity may result in disciplinary action, up to and including termination of employment.

## Protection and Use of HOPE Program Assets

HOPE Program's assets include both tangible property, such as equipment, products and money, and intangible intellectual property such as financial information, business and marketing plans, and training materials created while at HOPE Program. Every employee is responsible for protecting the assets entrusted to him or her (as well as for helping to protect assets in general) from loss, theft, infringement, and misuse. This responsibility covers your conduct and demands your attention to situations that could lead to loss, theft, or misuse of assets.

HOPE Program does not allow, at any time, the use of its assets or premises for illegal activities,



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including, but not limited to, the violation of intellectual property rights of other companies or individuals, and the use of illegal substances. Examples of illegal activities include the illegal downloading, sharing, copying or swapping of music and video files, and the violation of copyright protections through photocopying.

## Travel Policy

The Operations Department typically books all airfare and accommodations for employee travel. However, on the rare occasion when an employee is instructed to book his/her own air travel and/or accommodations, they must fill out a "Travel Request Form", prior to booking any travel arrangements. The form must be approved by the employee's manager. Employees must submit all expenses, along with original receipts, no later than 30 days from when the expenses were incurred. Any expenses submitted after 30 days, will be declined.

***Auto Travel and Public Transportation (including between HOPE Program offices)***

HOPE Program strongly encourages employees to take use of public transportation for their daily commute and for travel between regional offices whenever possible. HOPE Program will reimburse employees for public transportation costs and for using their personal cars on business at the IRS rate for reasonable mileage expenses under the following circumstances:

- HOPE's operating model is based on regional offices (e.g., the Bay Area offices). Each employee's regular commute includes travel to and from all of the offices within their assigned region. We do not reimburse employees for travel to HOPE offices or other meeting sites (e.g., containment meetings) unless travel exceeds the distance from the employee's home to the farthest office within their regularly assigned region. For example, an employee who is assigned to the Bay Area region would be reimbursed for travel to Salinas, but not for travel to the San Francisco, San Mateo, or Hayward offices.
- For travel outside your home region, you will be reimbursed mileage from your home to the other location less your normal commute mileage. Normal commute mileage is the distance from your home to the most distant office in your region.
- You will also be reimbursed for bridge tolls if your travel requires paying bridge toll. Parking is not reimbursed.
- If you choose to take public transportation rather than drive, you can charge actual commute expenses or mileage, but not both.
- Employees will not be reimbursed for parking fees or tolls if they have the option of taking public transportation (which does not include services like Uber and Lyft) to/from a HOPE Program office. When employees must pay for parking, they are expected to choose the least expensive option.

If the cost of mileage reimbursement will exceed the cost of a car rental, employees should rent an economy class car instead. Please note that if you rent a car with your personal credit card, the card must provide full insurance with no deductible. If your personal credit card does not offer this service, please speak with the finance department to make other arrangements.



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To claim mileage reimbursement:

- Keep a written record of your business-related travel, including the total mileage of each business trip, the date of travel, the location to which you traveled, and the purpose of your trip to submit with your expense form.
- If you anticipate having to travel an unusually long distance, get your Clinical Directors approval before making the trip. Trips within your assigned region are not consider reimbursable.
- Submit your record via accounts payable (ap@hoperogram.biz) before the end of the pay period. All expense reimbursements must be submitted within 30 days of incurring them.

***Air Travel***

Employees will be reimbursed for air travel that has been pre-approved by their manager. For travel within California, employees are expected to book the least expensive Southwest Airlines flight (generally a Wanna Get Away fare) which will allow them to reach their destination, both directions, within two hours of the necessary arrival time. Similarly, for travel outside of California, employees are expected to book the least expensive coach fare, regardless of airline, which will allow them to reach their destination, both directions, within two hours of the necessary arrival time. Employees who wish to book more expensive flights to accommodate their airline of choice, timing, or seating preferences, may pay the additional cost.

***Accommodations***

HOPE Program expects employees to select accommodations that are reasonably priced for their location. Any stay that is more $150 per night, require advance approval from Human Resources or Finance.

If an employee stays with friends or family in lieu of a hotel, you may purchase a gift – or take your host out for a meal – up to a maximum value of $100.

***Meal Reimbursement***

For travel that includes overnight stays, HOPE Program has set a meal reimbursement allowance $75 per day – reimbursable only with receipts. This may not be used to cover alcohol. Please note that HOPE Program will pay all or a portion of a reasonable large group meal, but requires that you include a description of the purpose of any such meal with your expense reimbursement request. Such meals must have a legitimate business reason in order to be eligible for reimbursement.



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# HEALTH, SAFETY, AND SECURITY

The safety and health of our employees is a priority at HOPE Program. We make every effort to comply with all federal and state workplace requirements. Each employee is expected to obey safety rules and exercise caution and common sense in all work activities.

**Smoking**

California law prohibits smoking in any public building or within 20 feet of a main entrance, exit, or window of a public building. Most other states in which our employees work and reside also prohibit smoking in workplaces and near public buildings.

HOPE Program does not permit smoking (including of e-Cigarettes or marijuana) in any Company buildings, facilities, work sites, or vehicles. Employees wishing to smoke should do so during break times, outside HOPE Program buildings in designated areas, and in accordance with local ordinances. Employees who are working offsite must adhere to the relevant rules governing smoking.

**Drug and Alcohol**

No employee may report to work or remain at work while under the influence of drugs (including marijuana) or alcohol. Consideration will be made as appropriate for employees taking prescription medication that may affect their ability to safely perform their job.

Employees are prohibited from possessing, furnishing, selling, offering, and purchasing illegal drugs or other controlled substances, as defined under federal or applicable state law on HOPE Program property, including marijuana. Employees who violate this policy will be subject to disciplinary action up to and including dismissal. Any illegal substances found on Company property will be turned over to local law enforcement and may result in criminal prosecution.

There may be occasions when alcoholic beverages are offered at HOPE Program-related social events either on or off HOPE Program property. In that case, it is the responsibility of each employee to behave in a professional manner and consume only a minimal quantity of alcohol, if any, so as to not affect their ability to professionally represent HOPE Program or impact the safety of the employee or any other party. HOPE Program assumes no responsibility or liability for employee's actions during or after such events.

**Safety and Workplace Violence**

HOPE Program intends to provide everyone with a safe and secure working environment. It is everyone's responsibility to assist in maintaining a safe and secure environment. Confidential materials should be kept out of sight and locked either in a file or office. Personal items of value should not be kept in the office. Laptop computers and other portable devices of substantial value should be kept in drawers. HOPE Program is not responsible for personal items lost, damaged, or stolen in the workplace.



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Please be aware of anyone who appears to be loitering around our offices or buildings and report suspicious people or activities to a Clinical Director, the CEO, or Human Resources immediately. We prohibit all employees, consultants, clients, and visitors to HOPE Program offices and property from behaving in a violent or threatening manner. Workplace violence can include, but is not limited to, threatening language, violent behavior, bringing weapons onto HOPE Program premises, or causing physical damage. Employees should immediately report incidents of potential or actual violence. We take seriously, and reserve the right to take action against, any behavior that suggests violence, even prior to violence occurring.

Acts or threats of physical violence, including intimidation, harassment and/or coercion, which involve or affect the Company or its employees, or which occur on HOPE Program property, will not be tolerated. This prohibition against threats and acts of violence applies to all persons involved in the operation of the Company, including, but not limited to employees, contract and temporary workers, and anyone else on HOPE Program property. Violations of this policy, by any individual, will lead to disciplinary and/or legal action as appropriate.

**Automobile Use**

An employee driving his or her own vehicle on HOPE Program business must hold a valid state driver's license for the class of the vehicle being driven and proof of liability insurance.

Please note that HOPE Program provides hired and non-owned liability insurance only. In the event of an accident or collision, employees are required to report the claim to their personal insurance company.

HOPE Program provides mileage reimbursement when employees use their own vehicles to perform job-related duties. Please see the "Travel Policy" for more details. An employee who receives a parking ticket or traffic citation while on HOPE Program business will be responsible for paying any resulting fine or penalty.

If an employee is involved in an automobile accident while on HOPE Program (in a personal or Company vehicle) they must report the accident to their Clinical Director or Supervisor immediately. Employees should request and obtain a police report and police investigation at the scene of the accident.

The use of a cell phone while operating a moving vehicle is prohibited unless the driver is utilizing a hands-free device in compliance with California state law and violates HOPE Program policy for all employees, regardless of location. Regardless of location, HOPE Program strongly discourages employees from using cell phones from driving.



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# EMPLOYMENT SEPARATION

HOPE Program is an at-will employer. This means that neither you nor HOPE Program has entered into a contract regarding the duration of your employment. You are free to terminate your employment with HOPE Program at any time, with or without reason and we also have the right to terminate your employment, or otherwise discipline, transfer, or demote you at any time, with or without reason.

## Voluntary Termination

We ask employees who wish to end their employment relationship to notify us at least four weeks in advance of their intended departure. Please give notice in writing to your manager and Human Resources. Proper notice generally allows us sufficient time to reassign your job responsibilities, calculate all accrued overtime (if applicable) and to prepare your final paycheck and other necessary paperwork.

## Involuntary Termination

Although HOPE Program hopes that our relationships with employees are long-term and mutually rewarding, the Company reserves the right to end the employment relationship at any time. Involuntary termination from employment may be considered a dismissal (for inadequate performance or misconduct), or a layoff. Layoff is defined as termination for non-disciplinary or non-performance related reasons.

For a dismissal due to inadequate performance or misconduct or layoff, HOPE Program may follow one of three options:

- **Option 1:** You may be terminated without notice at any time.
- **Option 2:** You may be given advance notice of the separation date and work up to and including the separation date with full pay.
- **Option 3:** You may be given advance notice of the separation date, but be asked not to report to work during the period between notification of termination and the separation date. If this is the case, you will receive full pay up to, and including the separation date.

## Re-Employment

If you voluntarily leave HOPE Program and give at least four weeks' notice, or if you are terminated as a layoff, you may be eligible for rehire. If you are rehired by HOPE Program, your hire date will be adjusted accordingly, and HOPE Program benefits will be based on your new hire date.

## Final Paychecks

HOPE Program will prepare your final paycheck and, with your written permission, deduct from that any money you may owe the Company. You will usually receive your final paycheck on your last day worked.



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## Personal Items

Terminated employees should remove any personal items at the time they leave HOPE Program. Personal items left in the workplace by terminated employees are subject to disposal.

## Forwarding Addresses

You should provide a forwarding address to HOPE Program if you move after leaving the Company so that we may send you your W-2, and any other pertinent information.

## Benefits at Termination

If you participate in any group insurance plans upon termination, your benefits will end on the last day of the month in which your employment is terminated. You will receive information outlining your rights to continued coverage, at your own expense, either in the mail or prior to your departure from HOPE Program.



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# EMPLOYEE HANDBOOK ACKNOWLEDGEMENT

## *Confirmation of Receipt*

I have received my copy of the HOPE Program Employee Handbook. I understand and agree that it is my responsibility to read and familiarize myself with the policies and procedures contained in the handbook. I understand that the information contained in this Handbook is a summary of present policies and procedures and does not create a contract of employment.

I understand that HOPE Program may change, rescind, or add to any policies, benefits, or practices from time to time at the sole discretion of the Company. HOPE Program will communicate policy changes through meetings, updates to this handbook, memoranda, or other means as appropriate.

I understand and agree that my employment is at-will. This means that I may terminate my employment at any time with or without notice. It also means that HOPE Program may terminate my employment at any time with or without notice, consistent with appropriate local, state, and federal laws. I understand that only the CEO is authorized to amend or change personnel policies, including my status as an at-will employee. Any such changes must be in writing and signed by the CEO.

Employee's Name: _____
(Please Print)

Employee Signature: _____

Date: _____



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HOPE PROGRAM
Helping Overcome Personal Experiences

# ACKNOWLEDGMENT OF RECEIPT OF CALIFORNIA MEAL PERIOD AND REST BREAK POLICY

I acknowledge that I have been provided with and understand HOPE Program's California Meal Period and Rest Break Policy, and understand that it is effective immediately. I agree to comply with this Policy.

I acknowledge, understand, and agree that I must notify my Clinical Director or Supervisor immediately if I am required to work through some or all of a timely 30-minute meal period or a 10-minute rest break, and that I should complete a premium form and submit it to my manager to ensure that I am properly compensated.

I understand that I may be subject to disciplinary action, up to and including termination of employment, if I violate this Policy.

_____
Employee Name (print)

_____ _____
Employee Signature Date



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